SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Civil Appeal No. 3631 of 2022 (YEAR: 2021)

CORAM: N.V. RAMANA, SANJIV KHANNA, KRISHNA MURARI

Vidya Drolia
... Appellant(s) / Petitioner(s)
Versus
Durga Trading Corporation
... Respondent(s)

Acts Referred:	Arbitration and Conciliation Act, 1996
Sections:	Section 8 Arbitration Act, Section 11 Arbitration Act

JUDICIAL HEADNOTE & SUMMARY

Laid down the definitive four-fold test to determine when subject matter of a dispute is non-arbitrable, overruling earlier precedents on landlord-tenant matters.

RATIO DECIDENDI

The Court held that: Laid down the definitive four-fold test to determine when subject matter of a dispute is non-arbitrable, overruling earlier precedents on landlord-tenant matters. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Vidya Drolia v. Durga Trading Corporation (Civil Appeal No. 3631 of 2022) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Arbitration and Conciliation Act, 1996, particularly Section 8 Arbitration Act, Section 11 Arbitration Act. Laid down the definitive four-fold test to determine when subject matter of a dispute is non-arbitrable, overruling earlier precedents on landlord-tenant matters.

OPERATIVE ORDER

ORDER: Decided